

Tentative Rulings

July 29, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on the tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If directed, attendance at the hearing is mandatory. The prevailing party will serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Gwinn v. General Motors, LLC, et al*, Case No. CIVVS2401195
Plaintiff's Motion for Attorneys' Fees
7/29/26, 10:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: Plaintiff submits 11 objections to the declaration of Defendant GM's counsel. The Court would **OVERRULE** as overbroad.

As to the motion: The Court would **AWARD** \$25,581 in attorneys' fees, plus costs in the amount of \$2,765.33. Thus, \$28,346.33, in total, is awarded.

Case Summary

This is a lemon law case. Plaintiff contends that he purchased the subject vehicle in July of 2023, and that it came with express and implied warranties. However, he asserts that the vehicle suffered from defects with the engine control module, fuel injectors, emergency braking system, and check-engine light, among other defects. Plaintiff further alleges that the authorized repair facilities were unable to conform the subject vehicle to warranty after a reasonable number of attempts and that Defendant failed to repurchase or make restitution. As such, in October of 2024, he filed suit for breach of express and implied warranty under the Song-Beverly Consumer Warranty Act.

Statement of Law

In general, attorneys' fees, costs, and expenses are recoverable under the Act, Civil Code section 1794, subdivision (d), which provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

To prevail under the Act, the buyer must have recovered damages or other legal or equitable relief. (Civ. Code, § 1794(a).) The burden is on the party seeking attorney fees to prove the fees are reasonable. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

Analysis

Here, Plaintiff seeks attorneys' fees in the amount of \$32,891.50 (per stated lodestar) and costs in the amount of \$2,765.33 for 70.3 hours of work litigating this matter from October 2024 to the present. Plaintiff, however, also seeks a 1.2x multiplier.

As to multiplier: The case does not warrant a multiplier. In this case, there is nothing novel about the legal or factual questions involved nor does the display of skills warrant a multiplier. While the case may have been taken on a contingency, that factor alone does not warrant a

multiplier. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 40 [factors including (1) novelty and difficulty; (2) skill displayed; (3) extent to which litigation precluded other work; and (4) contingency nature].)

As to attorney rates: Though the rates are somewhat high for the named partner given rates in the geographic region, the Court notes that Defendant does *not* challenge the rates. Further, given the reasonable rates set forth in relation to the associate and paralegal work, viewing the lodestar as a whole the Court will decline to adjust downward. This is not to be construed as an endorsement of the partner rate *per se*.

As to fee reductions:¹ First, Defendant takes issue with .4 hours two Plaintiff attorneys spent *separately* to review the Answer on December 6, 2024. This is duplicative work. While Defendant requests this be reduced by .6 hours, deleting only the lesser entry of .4 hours is a more reasonable means of addressing this duplication. The Court deducts \$210.00.

Second, Defendant argues that the 13.5 hours billed with respect to the motion to compel is not only excessive but also that Plaintiff has already been compensated for it. Indeed, Defendant is correct that with respect to this motion to compel, Plaintiff was already compensated. (See Keshishian Decl., ¶10.) Defendant also notes, accurately, that Plaintiff is now claiming twice the amount of time for the same work as was previously represented to the Court with respect to this motion. However, one entry on June 20, 2025, was billed to review the tentative ruling, and this entry, Plaintiff has not yet been compensated for, which totals \$123. Therefore, the Court deducts \$7,100.50.

As to costs: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc. § 1032, subd. (b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

¹ Arguments for reductions that are not addressed in this tentative were considered and declined. The instant tentative goes through those arguments it deems sufficient to result in reductions.